

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403424	ORTEGA vs *CREATIVE STONE MFG., INC.	MOTION FOR APPROVAL OF PAGA SETTLEMENT

Tentative Ruling: Appearances requested to discuss:

1. What was the amount allocated for plaintiff's individual claims and how was that amount calculated (and what is the "applicable law" that permits it to be confidential)?
2. Need to confirm that there are no PAGA claims that were not alleged in the complaint and included in the notice to the LWDA that are being covered by the settlement/release.
3. Definition of released parties is much broader than that in the CMO—whom are we trying to protect and should they be specifically named?
4. Date for review of administrator's report—add to proposed order.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501046	SOOALO vs LIQUID ENVIRONMENTAL SOLUTIONS OF CALIFORNIA, LLC	MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

Tentative Ruling: Appearances requested to discuss:

1. No declaration from defense counsel as required by the CMO.
2. Was a bidding process used to select Apex and was it the low bidder?
3. Confirm that there are no released claims that were not alleged in the operative complaint/notice to the LWDA.
4. Revise proposed order to specify the administrator's duties, including sending the notice by first class mail.
5. Add to notice the full title and date of filing of the document to which the settlement agreement is attached. Correct reference in notice that has the wrong settlement administrator (§ 22).
6. Administrator to redact any portion of an SSN on a form filed with the motion for final approval.
7. Correct opt out form to make it clear that even if you opt out, you will not just "may" be eligible for a PAGA payment but that you will be eligible (or that opting out of the class settlement will not exclude you from the PAGA settlement).
8. How are we going to get the PAGA claim alleged in the operative complaint—consolidate the 2310 action or amend the complaint in this action?